

EXHIBIT 5

UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.

In the Matter of

CERTAIN VERTICAL POWER DELIVERY
SYSTEMS, COMPONENTS THEREOF,
AND COMPUTING SYSTEMS
CONTAINING THE SAME

Investigation No. 337-TA-_____

DECLARATION OF KEMBLE MORRISON

I, Kemble Morrison, do hereby declare as follows:

1. I am the VP, Corporate Controller of Vicor Corporation.
2. I submit this declaration in support of the complaint submitted by Vicor under Section 337 of the Tariff Act of 1930. The facts stated in this declaration have been gathered and assembled by me or by knowledgeable and authorized Vicor employees and consultants, with my input and direction, and I am informed and, as I understand it, believe that the facts stated herein are true.
3. I understand Vicor was founded in 1981 and is headquartered in Andover, Massachusetts. Vicor is a leader in the development and manufacturing of high-performance power converter modules and vertical power delivery systems. Over the years, Vicor has continuously advanced the capabilities of its power converter modules and vertical power delivery systems and innovated easy-to-deploy modular power system solutions for use in high-end datacenters. Vicor's power converter modules and vertical power delivery systems are used by customers for purposes including enterprise and high-performance computing.

I. THE DOMESTIC INDUSTRY PRODUCTS

4. I am informed that this complaint involves United States Patent No. 10,903,734 (the "Asserted Patent"). I understand the following Vicor product families practice one or more of the claims of one or more of the Asserted Patent: DCM, GCM, MCM, MCD, and GBX products. I will refer to

these products that I understand practice at least one claim of the Asserted Patent collectively as the "Domestic Industry Products."

5. As I understand it, the Domestic Industry Products and the Asserted Patents they practice are summarized below in chart format:

Asserted	Practicing Domestic Industry Product Families
Patent No. 10,903,734	DCM, GCM, MCM, MCD, and GBX Domestic Industry Products

6. Over the course of several years, Vicor has invested and continues to invest in the United States millions of dollars per year in plant and equipment, labor and capital, research and development, and technical sales and marketing relating to the Domestic Industry Products. All periods in the following tables are annual full years.¹

II. PLANT & EQUIPMENT

7. Since 2021, Vicor has invested millions of dollars per year in plant and equipment attributable to the Domestic Industry Products.²

8. Vicor owns a facility at 25 Frontage Road in Andover, Massachusetts, which serves as its research and development, design engineering, applications engineering, sales and marketing and corporate headquarters. Employees at Vicor's Frontage Road facility perform research, development, engineering design and applications engineering activities related to the Domestic Industry Products. As of year-end 2025, Vicor's Frontage Road facility has approximately [REDACTED] dedicated square feet, not including common areas such as hallways, bathrooms, utility spaces, and cafeteria. Approximately [REDACTED] square feet of the dedicated space in Vicor's Frontage Road facility is allocable to engineering, research, development, and design activities related to the Domestic Industry Products.

¹ The 2021 period is after reducing the annual amount for the workdays that occurred before the patent was issued, January 26, 2021.

² Vicor is unable at this time to provide 2026 1Q and 2Q investments for the Domestic Industry Products.

9. Vicor maintains additional facilities within the United States where it performs applications engineering, sales support, and other customer support activities related to the Domestic Industry Products. These include facilities in Rhode Island, California, Texas, Oregon, and Illinois. Specifically, employees in Vicor's Picor Rhode Island facility and silicon designers in Andover, Massachusetts design and develop silicon controllers that go into Vicor's products, including the Domestic Industry Products. However, in the interest of being conservative, I have not included investments in Vicor's Rhode Island Picor facility or for the silicon designers in Andover in this declaration.

10. Based on the information I collected, the overall amount of Vicor's domestic plant and equipment expenditures that I understand are attributable to the portion of the 25 Frontage Road facility where Vicor performs research, development and engineering design of the Domestic Industry Products, including capital depreciation, utilities, maintenance costs, and other operation expenses, is summarized in the chart below, (including R&D process development and engineers at 400 Federal Street) rounded to the nearest thousand:

	Annual Plant & Equipment Expenditures Related to Research, Development, and Engineering Design at Frontage Road						
	2019	2020	2021	2022	2023	2024	2025
Plant							
Equipment							

11. Vicor does not track expenditures related to engineering, research, development, and design on a product-by-product basis in the ordinary course of business. The amount of Vicor's investments directed to the Domestic Industry Products may be calculated by estimating the collective time and effort of Vicor engineering teams devoted to the Domestic Industry Products as compared to all products. I understand that alternative allocation approaches may also be used to determine the amount of investments directed toward the Domestic Industry Products.

12. Based on a time and effort allocation, the approximate amount of Vicor's domestic plant and equipment expenditures related to research, development, and design engineering of the Domestic Industry Products at Vicor's 25 Frontage Road facility combined with R&D process development and

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engineering at Vicor's 400 Federal Street facility, including capital depreciation, utilities, maintenance costs, and other operation expenses, is summarized in the chart below, rounded to the nearest thousand:

Asserted Patent	Expense	Annual Plant & Equipment Expenditures Related to Research, Development, and Engineering Design of DI Products						
		2019	2020	2021	2022	2023	2024	2025
10,903,734	Plant							
	Equipment							

13. Vicor manufactures the vast majority of its products, including the Domestic Industry Products, at its facility located at 400 Federal Street in Andover, Massachusetts. Vicor owns its Federal Street facility. Vicor's manufacturing engineering teams are also located in this facility. Those engineering teams perform testing and reliability engineering, quality engineering, and process engineering for the Domestic Industry Products. Vicor's Federal Street facility originally had approximately [REDACTED] dedicated square feet, not including common areas such as hallways, bathrooms, conference rooms, and the cafeteria.

14. Starting in 2020, Vicor began expanding its Federal Street facility to increase its manufacturing capacity for the Domestic Industry Products. This expansion rolled out in stages, with first occupancy in January 2022. Manufacturing in the expanded facilities was ramped up in stages, with S6/S7 SMT lines running in Q2 of 2022, the DES plating cell running in Q4 2022, and fully online in Q4 2023. This expansion added approximately [REDACTED] square feet of manufacturing space to the Federal Street facility dedicated to manufacturing the Domestic Industry Products. Approximately [REDACTED] square feet of this total dedicated space of [REDACTED] square feet without common areas at Vicor's Federal Street facility is allocable to manufacturing and assembly, testing and reliability, quality, and process engineering activities related to the Domestic Industry Products, as of year-end 2025.

15. Based on the information I collected, and based upon our allocation methods for common overhead pools, the overall amount of Vicor's domestic plant and equipment expenditures

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that I understand are attributable to the portion of the Federal Street facility where Vicor performs manufacturing and assembly, testing and reliability, quality, and process engineering activities for the Domestic Industry Products is summarized in the chart below, rounded to the nearest thousand:

Expense	Annual Plant & Equipment Expenditures Related to Manufacturing and Assembly at Federal Street				
	2021 (1)	2022	2023	2024	2025
Plant					
Equipment					

16. Vicor does not track expenditures related to manufacturing and assembly, testing and reliability, quality, and process engineering on a product-by-product basis in the ordinary course of business. The amount of Vicor's investments directed to the Domestic Industry Products may be approximated using a unit sales allocation of the Domestic Industry Products compared to all products. I understand that alternative allocation approaches may also be used to determine the amount of investments directed toward the Domestic Industry Products.

17. Based on a unit sales allocation, the approximate amount of Vicor's domestic plant and equipment expenditures related to the manufacturing and/or assembly of the Domestic Industry Products, including purchase and/or lease amounts, maintenance costs, and other operation expenses, is summarized in the chart below, rounded to the nearest thousand:

Asserted Patent	Expense	Annual Plant & Equipment Expenditures Related to Manufacture and Assembly of DI Products				
		2021 (1)	2022	2023	2024	2025
10,903,734	Plant					
	Equipment					

18. From 2021 through 2025, the U.S. expenditures set forth in paragraphs 12 and 17 accounted for a considerable portion of Vicor's total U.S. plant and equipment expenditures.

III. LABOR & CAPITAL

19. Since 2021, Vicor has invested millions of dollars per year in labor and capital costs in the United States, including costs relating to testing, technical maintenance, service and support, research and development, design, engineering and technical training, and manufacture and/or assembly, for the Domestic Industry Products.

20. Vicor currently employs approximately 1,000 employees within the United States (primarily living and working in Massachusetts and Rhode Island), of which more than 500 employees dedicate all or a significant amount of their time on engineering, research and development, design, manufacture and/or assembly for the Domestic Industry Products.

21. Based on the information I collected, the overall amount of Vicor's domestic employment of labor attributable to employees whose responsibilities include research, development, and design engineering of Vicor's Domestic Industry Products, including salaries and similar expenditures, is summarized in the chart below, rounded to the nearest thousand:

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Annual Labor Related to Research, Development, and Design of Vicor						
2019	2020	2021	2022	2023	2024	2025

22. Based on a time and effort allocation, the approximate amount of Vicor's domestic labor related to research and development, design engineering of the Domestic Industry Products, including salaries and similar expenditures, is summarized in the chart below, rounded to the nearest thousand:

Asserted Patent	Annual Labor Related to Research, Development, and Design of DI						
	2019	2020	2021	2022	2023	2024	2025
10,903,734							

23. Based on the information I collected, the overall amount of Vicor's domestic employment of labor and capital attributable to employees that I understand are involved in the manufacturing and/or assembly of Vicor's Domestic Industry Products, including salaries and similar expenditures, is summarized in the chart below, rounded to the nearest thousand:

Annual Labor Related to Manufacturing and Assembly of Vicor Products				
2021 (1)	2022	2023	2024	2025

24. Based on a unit sales allocation, the approximate amount of Vicor's domestic labor related to manufacturing and/or assembly for all Domestic Industry Products, including salaries and similar expenditures, is summarized in the chart below, rounded to the nearest thousand:

Asserted Patent	Annual Labor Related to Manufacturing and Assembly of Domestic Industry Products				
	2021 (1)	2022	2023	2024	2025
10,903,734					

25. From 2019 through 2025, the U.S. expenditures set forth in paragraphs 22 and 24 accounted for a considerable portion of Vicor's total U.S. labor and capital expenditures.

IV. RESEARCH & DEVELOPMENT

26. Vicor has invested and continues to invest significant sums in research and development, and engineering directly related to the design and development of each of the Domestic Industry Products.

27. Based on the information I collected, the approximate amount of Vicor's total domestic research and development costs that I understand are related to the Domestic Industry Products from 2019 through 2025, is summarized in the chart below, rounded to the nearest thousand:

Asserted Patent	Annual Research and Development Expenditures Related to the Domestic Industry Products						
	2019	2020	2021	2022	2023	2024	2025
10,903,734							

28. From 2019 through 2025, the U.S. expenditures set forth in paragraph 27 accounted for a considerable portion of Vicor's total U.S. research and development expenditures.

V. SALES AND MARKETING AND APPLICATIONS ENGINEERING

29. Since 2021, Vicor has invested millions of dollars per year in sales and marketing and Applications Engineering in the United States. Sales and Marketing and Applications Engineering activities are carried out by employees at its Frontage Road facility and at its other facilities in the US. Many of these employees are engineers, and all employees are required to have a considerable amount of knowledge in order to discuss complex specifications and applications issues with customers.

30. Based on the information I collected, the overall amount of Vicor's domestic employment of labor attributable to employees that I understand whose responsibilities include sales and marketing and applications engineering of Vicor's Domestic Industry Products, including salaries and similar expenditures, is summarized in the chart below, rounded to the nearest thousand:

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Annual Labor Expenditures Related to Sales and Marketing at Vicor				
2021 (1)	2022	2023	2024	2025

31. Based on the information I collected, the overall amount of Vicor's domestic plant and equipment expenditures attributable to the portion of the facilities where Vicor performs sales and marketing and applications engineering activities for the Domestic Industry Products is summarized in the chart below, rounded to the nearest thousand:

Asserted Patent	Expense	Annual Plant & Equipment Expenditures Related to Sales and Marketing at Vicor				
		2021 (1)	2022	2023	2024	2025
10,903,734	Plant					
	Equipment					

32. The total amount of Vicor's expenditures attributable to sales and marketing and applications engineering activities is summarized in the chart below, rounded to the nearest thousand:

Annual Expenditures Related to Sales and Marketing at Vicor				
2021 (1)	2022	2023	2024	2025

33. Based on a unit sales allocation, the approximate amount of Vicor's domestic expenditures for sales and marketing and applications engineering of the Domestic Industry Products, is summarized in the chart below, rounded to the nearest thousand:

Annual Expenditures Related to Sales and Marketing for the Domestic Industry Products				
2021 (1)	2022	2023	2024	2025

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I declare under penalty of perjury that the foregoing is true and correct, as I understand it, in all material aspects.

Executed on September 1st, 2026, at Andover, Massachusetts



Kemble D. Morrison
VP, Corporate Controller
Vicor Corporation